

Tentative Rulings and Resolution Review Hearings
June 22, 2026
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

CAL TREES LLC VS. MAXIMUS TREE WORKS, LLC, ET AL.

CASE NUMBER: 24CV-0205268

Tentative Ruling on Orders to Show Cause Re: Striking Answer and Cross-Complaint: On May 14, 2026, an Order to Show Cause ("OSC") Re: Striking Answer and Cross Complaint was issued to Defendants Maximus Tree Works, LLC and Johnnie Morales ("Defendants"), in pro per for their failure to appear at the prior hearings on December 8, 2025 and May 4, 2026 and for their failure to participate in this case. No response to the OSC has been filed. Defendants have not taken any action on this case for several months. The Court previously imposed monetary sanctions against Defendants but the sanctions remain unpaid. Additionally, imposition of monetary sanctions was insufficient to compel Defendants to participate in this case. The Court finds that the Defendants have abandoned their defense and cross-claims. **The Court intends to strike Defendants' Answer and Cross-Complaint absent an appearance by Defendants and good cause shown.**

IN RE SPRINGER

CASE NUMBER: 26PB-0033424

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Riley Springer's claims from a motor vehicle accident on October 18, 2024. The minor's Guardian, Cindy Gonzalez, was appointed as the minor's Guardian ad Litem on June 9, 2026. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will ask counsel to voir dire Petitioner regarding the following: the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation purchase of annuity. **An appearance by the Petitioner is necessary on today's calendar.**

IN RE: HOWE

CASE NUMBER: 26CV-0209893

Tentative Ruling on Petition for Change of Name: Petitioner Sharon Elizabeth Howe seeks to change her name to Sharon Rose-Elizabeth Howe. The matter was originally on calendar for hearing on April 27, 2026 and May

26, 2026. At both prior hearings, Petitioner was advised that the Court required the original Certificate of Publication. Despite two continuances the original Certificate of Publication still has not been filed. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the original Certificate of Publication (not a copy) is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: JOHNSTON

CASE NUMBER: 25CV-0209354

Tentative Ruling on Petition for Change of Name: Petitioner Annette Brandi Nielsen aka Annette Brandi Johnston aka Brandi Annette Neilsen Johnston seeks to change her name to Brandi Annette Johnston. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

JONES VS. GENERAL MOTORS, LLC

CASE NUMBER: 25CV-0206995

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiff Zachary Jones filed this Song-Beverly Consumer Warranty Act case on February 5, 2025, alleging that his 2021 Chevrolet Silverado was defective and that GM failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. The case settled on August 19, 2025, through a written settlement agreement that expressly preserved Plaintiffs' right to seek fees and costs as the prevailing party under Cal. Civ. Code § 1794(d).

Plaintiffs seek attorney fees of \$28,256.25 (lodestar of 18,837.50 and 0.5 multiplier adding 9,418) and costs totaling \$1,228.77 for a total award of \$29,485.02. GM does not dispute that Plaintiffs are entitled to fees and costs. GM argues that: 1) hourly rates are excessive, 2) unreasonable hours should be stricken, 3) estimated fees should be stricken, and 4) no lodestar multiplier is warranted.

Untimely Opposition: CCP § 1005(b) provides that all opposition papers shall be filed with the court and a copy served on each party at least nine court days before the hearing. Defendant's Opposition was filed with the court only six court days before the hearing. (June 19, 2026, is a holiday.) Plaintiff's Reply does not object to the Court considering the late filing.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

GM has submitted a Declaration of Evan Martin along with its Opposition. The Declaration provides that Martin “reviewed and annotated a true and correct copy of the fees and costs sought by Plaintiff ...The highlighted portions of said document represent those that GM finds cumulative, excessive, or otherwise objectionable.” The attached Exhibit A highlights numerous time entries without specific explanation or argument as to their alleged unreasonableness. The Declaration of Daghighian provides that 31.4 hours were billed in total. The Court finds the hours billed reasonably spent based on the time records provided and will not reduce attorney hours.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. However, the court may also consider the attorney’s skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney’s customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff’s counsel seeks approval of rates ranging from \$700 for the senior partner, to \$525 for an associate. Counsel provides details on each attorney’s education and experience. Counsel also supports their requested rates by referring to two rate surveys as well as other courts where their rates have been approved. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Estimated Fees: GM objects to \$4,687.50 of anticipated time for work on this motion, arguing they are improper because the work had not been actually performed at the time of filing. The California Supreme Court has held that the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys’ fee application, and in the court’s fee award.” *Serrano v. Unruh*, 32 Cal.3d 621, 631. Additionally, Plaintiff’s Counsel has represented that 5 hours of the then-anticipated work has now been performed upon submission of the Reply brief. The remaining 2.5 hours for preparation and appearance at the hearing will be awarded unless counsel fails to appear.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a “fee enhancement” or “multiplier.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has “set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: ‘(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.’” *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

The Court has considered the factors listed above and declines to adjust the lodestar with a multiplier. This is a straightforward Lemon Law action which settled at mediation early in the case. No motion practice was undertaken. While the Court acknowledges the attorneys’ skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsel’s standard practice and did not preclude other employment. Finally, the contingent risk and delay in

payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff filed a detailed expense report. GM does not object to any costs. Total costs are \$1,228.77. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$12,560.00 and costs of \$1,228.77 are awarded, for a total of \$13,788.77. No proposed order has been lodged as required by Local Rule 5.17(D). Plaintiff shall submit the order.

KUNAU VS. CITY OF REDDING, ET AL.

CASE NUMBER: 24CV-0205953

Tentative Ruling on Motion for Leave to File Cross-Complaint: Defendant/Cross-Defendant City of Redding moves for leave to file a Cross-Complaint against Defendant/Cross-Complainant Sysco Sacramento, Inc. Sysco Sacramento, Inc. filed a limited opposition that does not oppose the merits of the motion, but seeks a continuance of the September 10, 2026 trial date should the motion be granted. The City of Redding argues that a continuance is not necessary. Although Plaintiff Cody Kunau was served with the Motion and Opposition, Plaintiff did file a response.

Cross-complaints are to be filed at the same time as the Answer. However, a party may obtain leave of Court to file a cross-complaint at any time. Leave may be granted in the interest of justice. CCP § 428.50. Allowing the City of Redding to file the proposed Cross-Complaint is in the interest of justice. Sysco Sacramento, Inc.'s request for a continuance is reasonable.

The motion is **GRANTED**. A proposed Cross-Complaint was not lodged, therefore, the City of Redding will need to file the Cross-Complaint. The City of Redding is granted ten days leave to file the Cross-Complaint. The September 10, 2026 trial date is vacated. Discovery will remain open and all discovery deadlines will be based on the new trial date. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial and appear to set a new trial date. The City of Redding provided a proposed Order that will be modified to reflect the Court's ruling.

MCCLOSKEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0209479

Tentative Ruling on Motion for Summary Judgment: Petitioner Allen Donald McCloskey moves for summary judgment on his Verified Petition for Writ of Mandate filed on December 19, 2025. Respondents City of Redding, Redding Fire Department, Jerrod Vanlandingham, and Hailey Holstein oppose the motion.

As a preliminary matter, the Court notes that while Petitioner timely filed his Reply on June 3, 2026, two Supplemental Declarations were filed on June 15, 2026.

A reply to the opposition shall be served and filed by the moving party not less than 11 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise. The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.

CCP § 437c(b)(4)

The Supplemental Declarations filed June 15, 2026 will not be considered as they were filed in violation of the statute.

Requests for Judicial Notice. Respondents request that the Court take judicial notice of the Petition and Answer filed in this matter. Both requests are granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

The Verified Petition for Writ of Mandate includes a single cause of action for Violation of the California Public Records Act. Specifically, Petitioner alleges that Respondents failed to perform a diligent search, arbitrarily limited or expanded the scope to avoid compliance, did not assist Petitioner despite detailed clarifications and offers to discuss, withheld record without justification, and exceeded statutory timelines without valid extensions. The CPRA Request is listed in ¶ 11 as being submitted “On or about November 2025.” *Verified Petition*, ¶ 11. The CPRA request from November of 2025 was numbered by the City of Redding as PRR-2025-401. *Dec. Elaina Short* ¶ 5-6, Ex. C-1. Petitioner’s UMF 1 lists the CPRA request as being dated December 23, 2025. For supporting evidence, Petitioner lists “Declaration of Allen McCloskey ¶ 3; Exhibit A.” The Declaration of Allen McCloskey in Support of Motion for Summary Judgment contains a December 23, 2025 letter as Exhibit A. This same letter is provided by Respondents as Exhibit B-7. This is a separate CPRA request was assigned the number of PRR-2025-476. The Verified Petition in this matter was filed on December 19, 2025. The CPRA request listed in the Separate Statement was submitted on December 23, 2025. The CPRA request that forms the basis of the Verified Petition for Writ of Mandate is a separate and distinct CPRA request from the CPRA request listed in Petitioner’s Separate Statement and was not submitted to the City of Redding until after the Verified Petition was filed.

The pleadings define the issues addressed in a summary judgment motion. *Lewis v. Chevron U.S.A., Inc.* (2004) 119 Cal. App. 4th 690.

Every motion for summary judgment should be accompanied by a separate statement setting forth plainly and concisely all the material facts that the moving party contends are undisputed. This court has stated, “One of the purposes of the separate statement requirement is to inform the opposing party of what issues and undisputed material facts they must address in order to defeat the motion. [Citation.]” (*Elcome v. Chin* (2003) 110 Cal.App.4th 310, 322 [1 Cal. Rptr. 3d 631].) Similarly, in *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 [125 Cal. Rptr. 2d 499], the court explained, “ ‘The due process aspect of the separate statement requirement is self evident—to inform the opposing party of the evidence to be disputed to defeat the motion.’ [Citation.] [¶] Where a remedy as drastic as summary judgment is involved, due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail.”

Deveny v. Entropin, Inc. (2006) 139 Cal. App. 4th 408, 432.

Petitioner cannot obtain summary judgment for a CPRA request that is not part of the Verified Petition for Writ of Mandate.

The motion is **DENIED**. Petitioner provided a proposed Order that will be modified to reflect the Court’s ruling.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Motion to Quash Subpoena Duces Tecum: Plaintiffs, Fredrick Phillips and Heather Phillips, move to quash two subpoenas duces tecum issued to Plaintiffs respective medical providers. Defendants, Prime Healthcare Services-Shasta, LLC dba Shasta Regional Medical Center and Prime Healthcare Services, Inc. oppose the motion.

The subpoena regarding Heather Phillips' medical records was withdrawn by Defendants, therefore the motion regarding the subpoena issued to Mercy Medical Center is denied as moot.

Procedural Defects. As a preliminary matter, Defendants argue that the motion should be denied because Plaintiffs failed to serve all parties, specifically Defendant City of Redding. Proofs of service by mail of the motion were filed on May 29, 2026, for all parties who have made a general appearance. Generally, all moving and supporting papers are required to be served at least 16 court days before the hearing. This time is extended by 5 days when service is by mail. CCP § 1005. Here, the proofs of service indicate service was made by mail on May 26, 2026, which is untimely for today's hearing. The Court notes Plaintiffs subsequently filed an amended notice of motion, and the proofs of service for the amended motion also indicate service was untimely.

Additionally, Defendants raise that Plaintiffs failed to file a separate statement in compliance with CRC 3.1345. Any motion involving the content of a discovery request must be accompanied by a separate statement, including a motion to quash the production of documents. CRC 3.1345. Here, Plaintiffs failed to file a separate statement. In the interests of reaching the merits, the Court will overlook the procedural defects.

Meet and Confer. CCP § 2016.040 requires the filing of a declaration showing facts that a reasonable, good faith attempt was made to informally resolve the issues presented. Defendants raise that Plaintiffs failed to properly meet and confer prior to filing the motion. The Court finds the meet and confer efforts to be sufficient.

Merits. The subpoena at issue seeks all of Plaintiff, Fredrick Phillips', medical records from UC Davis for the period of January 1, 2015, to present. A party may move for an order quashing a subpoena in its entirety, modifying it or directing compliance. CCP § 1987.1(a). The Court may also make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy. *Id.* A party may obtain discovery related to any matter, if the matter itself is admissible or reasonably calculated to lead to the discovery of admissible evidence. CCP § 2017.010. Generally, privileged information is not discoverable. CCP § 2017.010. However, Evid. Code § 996 provides that there is no physician-patient privilege as to communications relevant to an issue concerning the condition of the patient if the issue is tendered by the patient.

In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. An implicit waiver of a party's constitutional rights encompasses only discovery *directly relevant* to the plaintiff's claim and essential to the fair resolution of the lawsuit. There must be a compelling and opposing state interest justifying the discovery. Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.

Davis v. Superior Ct. (1992) 7 Cal. App. 4th 1008, 1014.

Here, Plaintiff's causes of action are factually predicated on his diagnosis of Hemophilia A and his severe chronic joint damage and mobility impairment. Defendants are attempting to subpoena medical records from Plaintiff's medical provider. Plaintiff has a right of privacy in his medical records. However, by filing the present suit he has waived any right in these records that are directly relevant to whether Plaintiff's prior existing medical conditions contributed to or caused the subject injuries. The Court has reviewed the scope of the subpoena and finds that it seeks records directly relevant to Plaintiff's claims. The Court also finds that there is not a less intrusive means to obtain this information. The request to quash or modify the subpoena is denied.

Sanctions. Defendants have requested sanctions against Plaintiffs based on alleged misuses of the discovery process for failing to meet and confer in good faith and making or opposing motions without substantial justification. CCP § 2023.010(h) & (i). While Defendant has ultimately prevailed in opposing the motion, Plaintiffs have shown that the parties met and conferred on the issues and that there was substantial justification to bring the motion. The request for sanctions is denied.

The motion is **DENIED**. The request for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's ruling.

WEBB VS. SIMPSON, ET AL.

CASE NUMBER: 25CV-0207020

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on May 15, 2026 to Plaintiff Amanda Kristeen Webb for her failure to appear at the prior hearing on May 11, 2026. No response has been filed. Without any explanation for her failure to appear, the Court will impose sanctions in the amount of \$250 against Plaintiff. The clerk is instructed to prepare a separate order of sanctions. The Court will issue an Order to Show Cause Re: Dismissal to Plaintiff pursuant to Gov't Code §68608(b) for her failure to appear at the prior hearing on May 11, 2026 and to appear at today's hearing on June 22, 2026. The Order to Show Cause Re: Dismissal is set for **Monday, September 21, 2026, at 8:30 a.m. in Department 63.** Today's review hearings set for 9:00 a.m. is continued to **Monday, September 21, 2026, at 9:00 a.m. in Department 63** for trial re-setting.

WEBB VS. BIRD MICRO-ELECTRIC MOBILITY, ET AL.

CASE NUMBER: 25CV-0208413

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on May 6, 2026 to Plaintiff Michelle Webb and her counsel for their failure to timely serve all Defendant as required by CRC 3.110(b) and for their failure to timely enter default of Defendant Bird Rides, Inc. No response to the OSC was filed; however, Plaintiff's counsel did file a declaration on May 8, 2026, requesting a continuance of the trial dates. It appears the declaration was prepared and submitted before Plaintiff received the present OSC. Based on the information provided in the May 8 declaration, the Court will DISCHARGE the OSC. The Court sets this matter for **Monday, August 24, 2026, at 9:00 a.m. in Department 63** for review regarding status of service. **No appearance is necessary on today's calendar.**

WELLS FARGO BANK, N.A. VS. GILLIS

CASE NUMBER: 23CVG-00548

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Pursuant to Stipulation: Plaintiff Wells Fargo Bank, N.A. seeks to vacate the dismissal entered on November 27, 2023 and enforce the Stipulation for Entry of Judgment attached as Exhibit 1 to the Declaration of Edgar B. Lopez. Despite being properly noticed, Defendant Lauren Taylor Gillis did not file an Opposition.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The Stipulation attached as Exhibit 1 was executed by both parties. The terms of the agreement are straightforward. The parties stipulated to a judgment of \$7,127.69 which is the principal amount. No costs were part of the agreement. The agreement calls for a payment of \$527.69 on or before March 28, 2025 followed by minimum monthly payments of \$300.00 on or before the 28th of every month starting on April 28, 2025 until the balance is fully paid by January 28, 2027. The parties also agreed that following the dismissal, Plaintiff may reopen the case to enter judgment in the event of Defendant's failure to comply with the terms of payment described in the agreement.

The declaration of attorney Edgar B. Lopez establishes that Defendant has made no payments and the principal sum still owing is \$7,127.69. Plaintiff has sufficiently shown that Defendant breached the terms of the agreement by failing to make payments as owed. Plaintiff requests that the judgment include \$300.00 in costs, however, this was not included in the Stipulation. Plaintiff may file a Memorandum of Costs.

The Motion is **GRANTED**. The dismissal is set aside and Judgment for the Plaintiff will be entered in the amount of \$7,127.69. Plaintiff provided a proposed Order and proposed Judgment, both of which will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

BAILEY VS. OLSEN

CASE NUMBER: 24CV-0204127

This matter is on calendar for review regarding status of minor's compromise. An Order Approving Compromise was filed on June 15, 2026. The matter is continued to **Monday, August 10, 2026 at 9:00 a.m. in Department 63** for confirmation of deposit and status of dismissal. **No appearance is necessary on today's calendar.**

BAKER VS. TERRILL

CASE NUMBER: 25CV-0207907

This matter is on calendar for review regarding status of counsel. The Court previously granted a motion relieving Plaintiff's Counsel, Brian Pratt. A Notice of Entry of Order has been filed showing service of the order on Plaintiff Justin Baker. Mr. Pratt has been relieved effective upon service of the Notice of Entry of Order and Plaintiff is now self-represented. **An appearance is necessary on today's calendar to provide the Court with a status of the litigation and, if appropriate, to set this matter for trial.**

CAL TREES LLC VS. MAXIMUS TREE WORKS, LLC, ET AL.

CASE NUMBER: 24CV-0205268

This matter is on calendar for review regarding status of the case. The Court notes that Defendant Michael Wasgatt was dismissed. The Court called the Order to Show Cause Re: Striking Answer and Cross-Complaint on this morning's Law & Motion calendar. **An appearance by Plaintiff is necessary on today's calendar to discuss whether Plaintiff intends to move forward with a default as to the remaining Defendants.**

CRUZ VS. WINCO FOODS, LLC

CASE NUMBER: 24CV-0204817

This matter is on calendar for review regarding status of pleadings and trial setting. Cross-Defendant Diamond Janitorial Company, LLC was named in both Cross-Complaints but has not appeared. Counsel for Defendant Winco Foods has submitted a declaration stating that Diamond Janitorial has a suspended business license, cannot accept service nor file a responsive pleading. **An appearance is necessary on today's calendar to discuss how the parties intend to proceed.**

CUMMINGS VS. MOMEX DINING CONCEPTS, INC.

CASE NUMBER: 23CV-0202977

This matter is on calendar for review regarding status of bankruptcy. Plaintiff filed a status report informing the Court that Defendant's bankruptcy matter is still pending. The matter is continued to **Monday, January 4, 2027 at 9:00 a.m. in Department 63** for status of bankruptcy. **No appearance is necessary on today's calendar.**

DAY VS. DAY

CASE NUMBER: 23CV-0203736

This matter is on calendar for a hearing to Determine Fair Market Value of the Property pursuant to CCP § 874.316(f). The Court previously reviewed and accepted an Appraisal Report providing a value of \$125,000 for the real property. The parties were given notice of today's hearing and informed of their right to file an objection to the appraisal. No objection has been filed. **An appearance is necessary on today's calendar to conduct a hearing on the value of the property and to discuss future steps.**

DUSTER VS. JPMORGAN CHASE BANK, NATIONAL ASSOCIATION

CASE NUMBER: 24CV-0206597

This matter is on calendar for review regarding status of judgment/dismissal. A Notice of Settlement was filed on March 23, 2026 which indicates that the case would be dismissed within 45 days after the settlement date of March 4, 2026. No dismissal has been filed. No judgment has been filed. The Court intends on dismissing this case pursuant to California Rule of Court 3.1385(b) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.

GARDINIER, ET AL. VS. ALL PERSONS UNKNOWN CLAIMING ANY LEGAL OR EQUITABLE RIGHT, TITLE, ESTATE, LIEN, OR INTEREST IN THE PROPERTY DESCRIBED IN THE COMPLAINT ADVERSE TO PLAINTIFFS' TITLE, OR ANY CLOUD UPON PLAINTIFFS' TITLE THERETO

CASE NUMBER: 25CV-0208529

This matter is on calendar for status of service and status of default. The Court previously granted Plaintiffs permission to serve the unknown Defendants by publication. The unknown Defendants have been served and defaulted. **An appearance is necessary on today's calendar to provide the Court with available dates for a quiet title default prove-up hearing.**

GARRIGUS VS. BLACH BEVERAGE, LLC

CASE NUMBER: 24CV-0206711

This matter is on calendar for review regarding status of responsive pleadings and trial setting. The parties have submitted status statements that indicate the parties have resolved the matter at mediation and that a motion for preliminary approval will be filed with a hearing date in August. This matter is set for **Monday, September 14, 2026, at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**

GOLENOR, ET AL. VS. MOON, ET AL.

CASE NUMBER: 25CV-0207109

This matter is on calendar for review regarding resetting of the mandatory settlement conference and trial dates. On June 16, 2026, Plaintiff's counsel filed a status conference statement indicating that the parties are working on a stipulation to allow Plaintiff to file a First Amended Complaint. The matter is set for **Monday, October 12, 2026 at 9:00 am in Department 63** for a trial setting conference. **No appearance is necessary on today's calendar.**

JONES VS. GENERAL MOTORS, LLC

CASE NUMBER: 25CV-0206995

This matter is on calendar for review regarding status of dismissal. The Court notes that the Plaintiff's Motion for Attorney Fees and Costs was granted on this morning's Law & Motion calendar. The matter is continued to **Monday, August 17, 2026 at 9:00 am in Department 63** for status of dismissal. **No appearance is necessary at 9:00 a.m.**

IN RE PARODI

CASE NUMBER: 25PB-0032864

This matter is on calendar for review to confirm the purchase of an annuity. The Court previously granted a Petition for Approval of Compromise on a minor's claim that required the purchase of an annuity. Counsel has provided a letter to the Court requesting a continuance of the hearing to allow for purchase of the annuity. The matter is continued to **Monday, August 10, 2026 at 9:00 am in Department 63** for confirmation of purchase of the annuity. **No appearance is necessary on today's calendar.**

PATTY VS. WALMART INC.

CASE NUMBER: 25CV-0208195

This matter is on calendar for review regarding trial setting. The Court notes that the matter is at issue. The Court designates this as a Plan III matter and intends to set the matter for trial not later than July 13, 2027. Only Defendant has posted jury fees. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

RSUI INDEMNITY CO. VS. SIERRA PACIFIC INDUSTRIES, INC., ET AL.

Case Number: 24CV-0204712

This matter is on calendar for a trial status conference at the parties' request. Trial is scheduled for June 30, 2026. As the Court noted in the order setting today's hearing, the Court is scheduled to begin another jury trial on June 23, 2026, which would likely make the Court unavailable for this trial on June 30. The parties are orders to meet and confer prior to the hearing regarding the schedule for pretrial motions, the order of witnesses, jury instructions, trial technology, and the submission of trial exhibits. **An appearance is necessary on today's calendar.**

SYNCHRONY BANK VS. SILACCI

CASE NUMBER: 24CVG-01485

This matter is on calendar for status of dismissal. The Court notes that a Request for Dismissal was filed on April 22, 2026, however, the matter was not dismissed because Defendant did not sign and a CCP § 664.6 retention was requested. **An appearance is necessary on today's calendar to provide the Court with a status of the dismissal.**

WEBB VS. SIMPSON, ET AL.

CASE NUMBER: 25CV-0207020

This matter is on calendar for review regarding status of service. The matter was called on this morning's Law & Motion calendar and calendared for **Monday, August 24, 2026, at 9:00 a.m. in Department 63** for review regarding status of service. **No appearance is necessary on today's calendar.**

ZANIN VS. CROSBIE, ET AL.

CASE NUMBER: 25CV-0208552

This matter is on calendar for review regarding status of service and trial setting. The Court notes that Cross-Defendant Kristian Kent was recently served by publication. This matter is continued to **Monday, July 27, 2026, at 9:00 a.m. in Department 63** for review regarding trial setting. **No appearance is necessary on today's calendar.**